2. Its audited statement of accounts
3. Plan for surplus disposal as approved by the general body of the co-operative society
4. List of amendments to the by-laws of the co-operative society
5. Declaration regarding date of holding of its general body meeting and conduct of elections when due[6]

Offences and Penalties: The state legislature may make provisions for the offences relating to the co-operative societies and penalties for such offences. Such a law shall include the commission or omission of the following acts as offences:

1. A co-operative society wilfully makes a false return or furnishes false information
2. Any person wilfully disobeys any summon, requisition or order issued under the State Act
3. Any employer who, without sufficient cause, fails to pay to a co-operative society the amount deducted from its employee within a period of fourteen days
4. Any officer who wilfully fails to handover custody of books, accounts, documents, records, cash, security and other property belonging to a co-operative society to an authorised person
5. Any person who adopts corrupt practices before, during or after the election of members of the board or office bearers.

Application to Multi-state Co-operative Societies: The provisions of this part shall apply to the multi-state co-operative societies subject to the modification that any reference to the "State Legislature", "State Act" or "State Government" shall be construed as a reference to "Parliament", "Central Act" or "Central Government" respectively.

Application to Union Territories: The provisions of this part shall apply to the Union territories. But, the President may direct that the provisions of this part shall not apply to any Union territory or part thereof as he/she may specify in the notification.

Continuance of Existing Laws: Any provision of any law relating to co-operative societies in force in a state immediately before the commencement of the Constitution (Ninetyseventh Amendment) Act, 2011, which is inconsistent with the provisions of this part, shall continue to be in force until amended or repealed or until the expiration of one year from such commencement, whichever is less.[7]

REASONS FOR 97TH AMENDMENT

While introducing this amendment bill in the Parliament, the Government of India gave the following reasons for making this amendment to the Constitution of India:

1. The co-operative sector, over the years, has made significant contribution to various sectors of national economy and has achieved voluminous growth. However, it has shown weaknesses in safeguarding the interests of the members and fulfilment of objects for which these institutions were organised. There have been instances where elections have been postponed indefinitely and nominated office bearers or administrators have remained in-charge of these institutions for a long time. This reduces the accountability in the management of co-operative societies to their